

22SMCV02709 22SMCV02709

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-15

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The motion for reconsideration is denied. Plaintiff seeks reconsideration of the court's prior order granting defendant's motion for summary judgment. The motion was denied in part for the failure to file a separate statement, but also on the merits. Plaintiff presents no fact or evidence that was unavailable to him at the time of the motion, nor has there been a change in the law. Even were there some new evidence, the court seen no justification for the failure to have obtained it earlier. The court was also concerned that plaintiff, who was employed in a foreign country by defendant and lived and worked there, cannot sue under California law. California employment law is generally not extra-territorial. All of the actions here occurred outside of California—indeed, outside the United States. In reply, plaintiff seeks redress under section 473, claiming excusable neglect. The court does not believe it has been established.

The motion is DENIED.

The motion to vacate the judgment is also DENIED. Plaintiff does not object to the form of the judgment—which was the only thing the court gave him the right to do—he objects to the substance. The substance was set when the court granted the summary judgment motion. Because there is no basis to recall or modify the judgment, there is no basis for the motion and plaintiff was not denied due process.